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Case Number: 25CHCV02903 Hearing Date: September 4, 2026 Dept: F43

Dept. F43

Hearing Date: 09-04-26

Case # 25CHCV02903, Garlinghouse

v. Park Burnet Townhomes South Homeowners, et al.

Trial Date: 04-09-29

MOTION TO COMPEL

FURTHER RESPONSES TO REQUESTS FOR PRODUCTION

MOVING PARTY: Defendant Park Burnet Townhomes South
Homeowners Association

RESPONDING PARTY: No opposition was filed.

RELIEF REQUESTED

Order compelling plaintiff's further verified
responses to defendant Park Burnet's first set of requests for production
numbers 1 through 23 and imposing \$800 in monetary sanctions against Plaintiff
and his counsel of record.

RULING: Motion is granted in part and denied in part
as described below in Section A. The
court awards defendant Park Burnet \$400 in monetary sanctions.

SUMMARY OF ACTION

Plaintiff Timothy Garlinghouse (Plaintiff)

filed this premises liability action against defendants Park Burnet Townhomes South Homeowners Association (Park Burnet) and Ross Morgan & Company, Inc. on August 15, 2025, asserting negligence, premises liability, and breach of contract. A First Amended Complaint was filed on January 30, 2026. Park Burnet is a residential owner's association for condominium development located at 8800 Burnet Avenue, Unit 12, in North Hills, CA 91343. Plaintiff alleges he was a resident and homeowner of Unit 12. On August 15, 2023, Plaintiff slipped and fell on plant material while he descended the stairs in the common area of the subject property. Plaintiff claims the plant material had encroached onto the steps as a result of poorly and inadequately maintained landscaping. Park Burnet served an answer with co-defendant Ross Morgan on February 10, 2026.

On February 10, 2026, defendant Park Burnet electronically served Plaintiff with its first set of requests for production. (Declaration of Wendy D. Rossnagel ¶ 3, Exh. A.) Park Burnet granted two deadline extensions, and Plaintiff served objection-only responses on April 28, 2026. (Id. ¶ 4, Exhs. B-C.) Defense counsel made several "meet and confer" attempts, including a letter requesting further objection-free responses by May 11, 2026, and a telephone call on May 15, 2026. (Id. ¶¶ 5-6, Exh. C.) On May 18, 2026, Plaintiff's counsel represented that further responses would be provided, but no further responses have been served. (Id. ¶¶ 7-8.)

On June 15, 2026, defendant Park Burnet filed the instant motion to compel Plaintiff's further verified responses to its first set of requests for production numbers 1 through 23 and to impose \$800 in monetary sanctions against Plaintiff and his counsel of record. No opposition was filed.

MEET AND CONFER

A motion to compel further responses to requests for production must include a "meet and confer" declaration showing a "reasonable and good faith attempt" to resolve issues outside court. (Code Civ. Proc., §§ 2016.040, 2031.310, subd. (b)(2).) In Department 43, "meet

and confer” means in person or via phone, not by letter or email. (Department F43 Courtroom Information, at p. 2.)

Based on the defense counsel's emails and phone call attempt, the “meet and confer” requirement is met.

ANALYSIS

A. Compelling

Further Responses to Requests for Production

A demanding party may move to compel responses to requests for production where the responding party fails to provide any responses. (Code Civ. Proc., §§ 2031.300, subd. (b), 2030.290, subd. (b).)

The demanding party must show the requests were properly served, that the time to respond expired, and no response has been served. (*Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal.App.4th 390, 403-404.) The responding party must serve verified responses within 30 days after the requests for production are served or according to an agreed upon deadline extension. (Code Civ. Proc., §§ 2031.260, subd. (a)(1)-(3), 2031.310, subd. (c).) Failing to respond within these time limits waives objections. (Code Civ. Proc., § 2030.290, subd. (a).)

The responding party must respond separately to each demand by agreeing to comply, stating an inability to comply, or objecting to all or part of the demand. (Code Civ. Proc., § 2031.210, subd. (a).) If the responding party claims an inability to comply with a demand, the party must specify that “that a diligent search and a reasonable inquiry has been made in an effort to comply with that demand [and] whether the inability to comply is because the particular item or category has never existed, has been destroyed, has been lost, misplaced, or stolen, or has never been, or is no longer, in the possession, custody, or control of the responding party.” (Code Civ. Proc., § 2031.230.) The statement must also “set forth the name and address of any natural person or organization known or believed by that party to have possession, custody, or control of that item or category of item.” (*Id.*) Documents or category of documents produced in response to a request for production must “be identified with the specific

request number to which the documents respond.”

(Code Civ. Proc., § 2031.280, subd. (a).)

Defendant Park Burnet properly served the requests for production, and Plaintiff served objection-only responses by the second deadline extension. Plaintiff provided identical objections to each request:

OBJECTION. This request is overly broad, indefinite as to time and without reasonable limitation in its scope. *West Pico v. Superior Court* (1961) 56 Cal.2d 407. Vague, ambiguous, lack of foundation, calls for speculation, compound, calls for legal conclusion. This request seeks information, the disclosure of which would violate the state and federal privacy rights of Responding party, including the right to privacy as protected by Article 1, Section 1 of the California Constitution, statutory rights to privacy, and common-law privileges pertaining to the disclosure of personal and confidential information. In addition, this request violates California's taxpayer privilege.

Responding party objects to this interrogatory[1] to the extent it calls for the disclosure of information that is protected by the attorney client privilege and the attorney work product doctrine, or to the extent it seeks to obtain the legal impressions, materials and assessments of counsel for Responding party, or those of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

Park Burnet seeks further responses to all 23 requests for production.

Request numbers 1 through 10 seek documents or communications that support, discredit, or relate in any way to various allegations in the Complaint. (See

Compl. ¶¶ 12, 15, 16, 17, 18, 24, 25, 26, 32, 34.) Numbers 11, 12, and 13 request all documents, including photographs, motion pictures, and videotapes, that depict any and all property damage incurred by Plaintiff or any other party due to the subject incident; any injuries sustained by Plaintiff from the accident; and the scene of the subject incident. Number 14 seeks

documents, including reports made by any person concerning the incident. Number 15 seeks all documents that support the existence of and the amount of any damages, other than property damage, loss of income, and physical, mental, or emotional injuries Plaintiff incurred from the subject incident.

Request numbers 16 and 17 request all documents, including W-2 and 1099 Forms, payroll check stubs, and writings from Plaintiff's employers, that detail Plaintiff's earnings for the five-year period immediately preceding the incident and the time period after the subject incident to the present. Number 18 seeks Plaintiff's personal diary and calendar since the incident has occurred. Numbers 19 and 20 seek all items, including photographs, motion pictures, videotapes, and DVDs that depict the scene of the incident and depict any injuries arising out of the incident. Number 21 seeks all documents, including written, oral, transcribed, recorded, and videotaped statements of any witness including the parties, relative to the incident.

Request number 22 seeks all documents, including W-2 and 1099 forms, payroll check stubs, and writings from Plaintiff's employer, that detail the wage loss Plaintiff incurred as a result of the subject incident. Number 23 seeks all documents, including medical records, medical reports, progress notes, prescriptions, and billings for any and all treatment from a health care provider for any injury Plaintiff sustained that he attributes to the subject incident.

1. Overly

Broad, Indefinite as to Time and Without Reasonable Limitation in Its Scope, Vague, Ambiguous, Compound, Lack of Foundation, Calls for Speculation, and Calls for Legal Conclusion

The court overrules Plaintiff's boilerplate objections for overly broad, indefinite in time and scope, vague, ambiguous, compound, lack of foundation, calls for speculation, and calls for legal conclusion as to request numbers 1 through 18 and 22-23.

The court finds request numbers 19 and 20 are overly broad to the extent they seek the same "photographs, motion pictures, and videotapes" that of the scene of the incident and injuries from the incident as request numbers 12 and 13. Thus, the court sustains the overly broad objection to request numbers 19 and 20 to the extent that they overlap with request numbers 12 and 13.

The court sustains the vague, ambiguous, and indefinite in scope objections to request number 21 because defendant Park Burnet's use of the term "relative" is unclear and expands the scope of documents requested beyond documents "related" to the subject incident.

2. Plaintiff's

Right to Privacy pursuant to Article 1, Section 1 of the California Constitution, statutory rights to privacy, and common-law privileges pertaining to the disclosure of personal and confidential information

"The party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious.

. . . The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations." (Williams v. Superior Court (2017) 3 Cal.5th 531, 552, [citing Hill v. National Collegiate Athletic Ass'n (1994) 7 Cal.4th 1, 35-37]; see also Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1250-1251, citations omitted.) If the party asserting a privacy right fails to satisfy all three requirements, the court need not proceed to the fourth step of balancing competing interests. (See id. at 555.)

Request numbers 16, 17, 22, and 23 encompass documents which are protected by Plaintiff's right to privacy in her medical records and history and her employment and personnel files. (See Puerto v. Superior Court (2008) 158 Cal.App.4th 1242, 1249-1250.) Former and current corporate employees have a legitimate expectation of privacy as to personal information they provide to employers—telephone numbers and addresses—as a condition of employment. (Id. at p. 1252.) Where the requested discovery is personal (i.e., contact information), rather than sensitive (i.e., medical or financial details, political affiliations, sexual relationships, or personnel information), sharing the information is not a serious invasion of privacy; it is basic civil discovery. (Id. at pp. 1253-1254.) Information such as addresses and telephone numbers—the location of witnesses—"is generally discoverable, and it is neither unduly personal nor overly intrusive." (Id. at p. 1254 [citing Pioneer Electronics (USA), Inc. v. Superior Court

(2007) 40 Cal.4th 360, 373].) Any such intrusion is less significant where the party withholding the information has already disclosed the identity of the witnesses. (Id. at p. 1254.)

But not all employment-related information qualifies as sensitive personal data warranting privacy protection. (See *International Federation of Professional & Technical Engineers, Local 21, AFL-CIO v. Superior Court* (2007) 42 Cal.4th 319, 342-346 [distinguishing between personal information in a personnel file versus information arising out of the employment relationship such as salary information for peace officers].)

Because Plaintiff's income before the incident, at the time of the incident, and after the incident are necessary to determine whether Plaintiff has lost income and his earning capacity and to determine the amount of income Plaintiff has lost, the court finds that the need for this information outweighs Plaintiff's privacy interest in his W-2s, 1099s, paystubs, and other employer writings.

Moreover, a plaintiff who files a lawsuit for damages arising from a personal injury puts the injury and its related body parts in controversy. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 389-390.)

However, the privacy right waiver created by filing a lawsuit "must be narrowly rather than expansively construed."

(Id. at p. 842.) "[A]n implicit waiver of a party's constitutional rights encompasses only discovery directly relevant to the plaintiff's claim and essential to the fair resolution of the lawsuit." (Id.) When a plaintiff claims damages for injuries or loss of wages in a personal injury case, medical history related to the affected body parts is relevant evidence regarding causation and the extent of damages attributable to the defendant's conduct. (See *People v. Gillard* (1997) 57 Cal.App.4th 136 [stating "accurate medical history" could provide an alternative explanation for the cause of a knee condition].) A party may demonstrate a preexisting disability for the body parts at issue by presenting evidence such as "testimony by the worker concerning actual disability before the injury, complaints to coworkers or physicians before the industrial injury, treatment to the same part of the body before the injury, measurable preexisting loss of functioning, or other similar evidence demonstrating actual preexisting disability." (See *Ditler*

v. Workers' Comp. Appeals Bd. (1982) 131 Cal.App.3d 803, 814-815, fn. 8.)

Because Plaintiff filed this action alleging personal injuries from the subject incident, including a head injury and a broken left foot, the court finds that Plaintiff has waived his right to privacy concerning documents which evidence medical diagnoses of injuries allegedly caused by the subject incident. (See FAC ¶ 12.) As such, the interest and need to determine the damages owed to Plaintiff also outweighs Plaintiff's privacy interest in medical records concerning Plaintiff's injuries arising from the incident at issue by filing this action.

Therefore, the court overrules Plaintiff's privacy objection as to all 23 requests for production.

3. The Taxpayer Privilege

The taxpayer privilege is an implied evidentiary privilege that arises from Revenue and Tax Code, section 19542. "[I]t is a misdemeanor for the Franchise Tax Board or any member thereof, or any deputy, agent, clerk, or other officer or employee of the state, including its political subdivisions, or a jury commissioner, or any former officer or employee or other individual, who in the course of their employment or duty has or had access to returns, reports, or documents required to be filed under this part, to disclose or make known in any manner information as to the amount of income or any particulars, including the business affairs of a corporation, set forth or disclosed therein." (Rev. & Tax Code, § 19542.) Although Section 19542 is directed at government officials and employees, the California Supreme Court held the prohibition creates an evidentiary privilege for the taxpayer and is also directed at private individuals. (Webb v. Standard Oil Co. of Cal. (1957) 49 Cal.2d 509; Schnabel v. Superior Court (1993) 5 Cal.4th 704 [protecting tax returns, personal income, corporate, income, payroll, employment, and sales tax returns and the information contain in those returns and tax related documents].)

Here, request numbers 16, 17, and 22 implicate the taxpayer privilege in part because they expressly seek W-2s and 1099s, tax documents which are protected by the taxpayer privilege. (See Brown v. Superior Court (1977) 71 Cal.App.3d 141, 143-144 ["The W-2 forms, which are required to be attached to a taxpayer's state and federal income tax returns, constitute an integral part of the return and qualify as 'information contained in the returns' within

the meaning of *Sav-On Drugs, Inc. v. Superior Court* (1975) 15 Cal.3d 1, 5.”.)

However, the taxpayer privilege is not absolute and the privilege will not be upheld if (1) the circumstances indicate an intentional waiver of the privilege; (2) the gravamen of the lawsuit is inconsistent with the continued assertion of the privilege; or (3) a public policy greater than that of the confidentiality of tax returns is involved. (*Schnabel*, supra, 5 Cal.4th at p. 721, citations omitted.)

Defendant Park Burnet does not demonstrate that any of the three exceptions apply.

No intentional waiver has occurred because Plaintiff has not voluntarily agreed to produce or purposefully produced his tax returns, W-2s, or 1099s. (*Fortunato v. Superior Court* (2003) 114 Cal.App.4th 475, 479-480.)

Next, the gravamen of this action is whether defendants’ conduct caused Plaintiff’s injury and resulted in him losing income and his earning capacity. Although Plaintiff’s income before, during, and after the incident is relevant for the damages analysis, this information can be determined from non-tax-return related documents, and Plaintiff has not directly put the contents of his tax returns or the W-2s and 1099s at issue. (See *Wilson v. Superior Court* (1976) 63 Cal.App.3d 825, 829-831 [privilege waived where plaintiff sued accountants for negligently advising her of the tax consequences of a real estate sale and the existence and content of plaintiff’s tax returns was necessary to determine the main issue in the complaint].) Finally, defendant Park Burnet references no public policy which warrants disclosure. (See *Li v. Yan* (2016) 247 Cal.App.4th 56, 67-68 [finding strong public policy to prevent fraud against creditors].)

Thus, the court sustains the taxpayer privilege objection to request numbers 16, 17, and 22 to the extent the requests seek Plaintiff’s tax returns, W-2s, 1099s, and the phrase “writings from Plaintiffs employer” includes tax returns.

The court overrules the taxpayer privilege objection as to requests for production numbers 1 through 15, 18 through 21, and 23.

4. Obtaining

the legal impressions, materials and assessments of experts who have not been designated pursuant to California Code of Civil Procedure section 2034.010 et seq.

The court finds that this objection is boilerplate and lacks merit as to all 23 requests for production. Thus, the court overrules Plaintiff's "expert" objection.

5. Attorney-client privilege and attorney work-product doctrine

The attorney-client privilege protects confidential communications, such as legal advice, between a client and an attorney made in the course of the attorney-client relationship. (*Edwards Wildman Palmer LLP v. Superior Court* (2014) 231 Cal.App.4th 1214, 1224.) The attorney-client privilege also allows a client to refuse to disclose and to prevent another from disclosing confidential communications between the client and lawyer. (Evid. Code, § 954.) "Relevant facts may not be withheld merely because they were incorporated into a communication involving an attorney, and knowledge that is not otherwise privileged does not become so by being communicated to an attorney." (*Edwards Wildman Palmer LLP, supra*, 231 Cal.App.4th at p. 1226; see also *San Francisco Unified School District v. Superior Court* (1961) 55 Cal.2d 451, 457 [forwarding counsel non-privilege records in the guise of reports does not create a privilege with the respect to such records and their contents].) However, "when the communication is a confidential one between attorney and client, the entire communication, including its recitation or summary of factual material, is privileged." (*Edwards Wildman Palmer LLP, supra*, 231 Cal.App.4th at pp. 1226-1227.) Where reports by employees are created for the transmission to the employer's attorney in preparation for defense in litigation, the reports were privilege attorney-client communications. (*Rodriguez v. North American Rockwell Corp.* (1972) 28 Cal.App.3d 441, 449.)

The work-product doctrine provides absolute protection for "any writing that reflects an attorney's impressions, conclusions, opinions, or legal research or theories." (Code Civ. Proc., § 2018.030, subd. (a), emphasis added.) "Writing" means any form or recorded information. (Code Civ. Proc., § 2016.020, subd. (c).) All other work product "is not discoverable unless the court determines that denial of

discovery will unfairly prejudice the party seeking discovery in preparing that party's claim or defense or will result in an injustice." (Code Civ. Proc., § 2018.030, subd. (b).) "[W]itness statements obtained as a result of interviews conducted by an attorney, or by an attorney's agent at the attorney's behest, constitute work product protected by section 2018.030." (Coito v. Superior Court (2012) 54 Cal.4th 480, 494.) However, "a statement independently prepared by a witness does not become protected work product simply upon its transmission to an attorney." (Ibid.)

"Central to the discovery process is the identification of potential witnesses." (Puerto, supra, 158 Cal.App.4th at p. 1249.) "[W]itness statements are entitled as a matter of law to at least qualified work product protection. The witness statements may be entitled to absolute protection if defendant can show that disclosure would reveal its 'attorney's impressions, conclusions, opinions, or legal research or theories.' If not, then the items may be subject to discovery if plaintiff can show that 'denial of discovery will unfairly prejudice [her] in preparing [her] claim . . . or will result in an injustice.'" (Coito v. Superior Court (2012) 54 Cal.4th 480, 486, quotations omitted.) However, a list of potential witnesses who gave counsel "their independently prepared statements would have no tendency to reveal counsel's evaluation of the case. Such a list would therefore not constitute qualified work product." (Nacht & Lewis Architects, Inc. v. Superior Court (1996) 47 Cal.App.4th 214, 217-218.)

As phrased, request number 21 encompasses documents protected by the attorney-client privilege (statements by the parties, including from Plaintiff to Plaintiff's counsel) and the attorney work-product doctrine. Concerning the work-product doctrine, the documents requested may include witness statements taken by Plaintiff's counsel, which could reveal counsel's legal strategy concerning how and which witnesses gave statements to Plaintiff's counsel, and the questions asked during the taking the statements. Thus, the court sustains the attorney-client privilege and work-product doctrine objections to request for production number 21.

If Plaintiff believes request numbers 1 through 20 and 22 through 23 seek documents or communications which are

protected by the attorney-client privilege or the work-product doctrine, Plaintiff must produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. (See also Code Civ. Proc., § 2030.240, subds. (b).)

Therefore, the court grants in part and denies in part defendant Park Burnet Townhomes South Homeowners Association's motion to compel plaintiff Timothy Garlinghouse's further responses to its first set of requests for production as described above in Section A.1-5.

Plaintiff is ordered to serve further verified responses and responsive documents to requests for production numbers 1 through 20 and 22 through 23 as described above in Section A, except those responses or responsive documents that Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine. Responses must be served within thirty (30) days of the issuing of this order.

For those responses and responsive documents that Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The privilege log must be served with the further responses and responsive documents. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions.

B. Sanctions

Defendant Park Burnet asks the court to impose \$800 in monetary sanctions against Plaintiff and his counsel of record. (Rossnagel Decl. ¶ 9.)

The court must impose monetary sanctions against any party, person, or attorney who unsuccessfully makes or opposes a motion to compel an answer or produce documents at a deposition, unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (Code Civ. Proc., § 2025.480, subd. (j).)

The court finds that defendant Park Burnet is entitled to sanctions because many of Plaintiff's objections lack merit, and Plaintiff's counsel has failed to oppose the instant motion, serve further responses

between May 18, 2026 and June 15, 2026, or provide an update as to whether further responses are still forthcoming.

Thus, Plaintiff fails to provide a substantial justification and does not demonstrate imposing sanctions would be unjust.

Defense counsel charges \$185 per hour and seeks 2.0 hours preparing the motion—\$370; 2.0 hours traveling to and appearing at the motion hearing—\$370; and a \$60 filing fee.

(Rossnagel Decl. ¶ 9.)

Although the court finds the hourly rate is reasonable, the court reduces the sanctions award to \$400 because many of the motion's components are virtually identical Park Burnet's other motions to compel further discovery responses.

CONCLUSION and ORDER

Defendant Park Burnet Townhomes South Homeowners Association's motion to compel further responses to its first set of requests for production is granted in part and denied in part as described above in Section A.

1. Plaintiff is

ordered to serve further verified responses and responsive documents to requests for production numbers 1 through 20 and 22 through 23 as described above in Section A, except those responses or responsive documents that Plaintiff claims are protected by the attorney-client privilege or the attorney-work product doctrine.

Responses must be served within thirty (30) days of the issuing of this order.

2. For

those responses and responsive documents that Plaintiff claims the attorney-client privilege and work-product doctrine applies, Plaintiff is ordered to produce a privilege log that complies with the standards in *Catalina Island Yacht Club v. Superior Court* (2015) 242 Cal.App.4th 1116. The privilege log must be served with the further responses and responsive documents. The initial failure to provide an adequate privilege log may result in monetary sanctions, and subsequent failures to comply may result in issue or evidentiary sanctions.

3. The

court awards defendant Park Burnet \$400 in monetary sanctions. Plaintiff and his counsel are ordered to pay defendant Park Burnet's counsel within thirty (30) days of the issuing of this order.

Defendant Park Burnet Townhomes South Homeowners
Association to give notice.

[1] The court believes Plaintiff meant to
state "request."